

4	30-2025-01495811 Frye vs. Rancho Silverado Stables, LLC	Defendants Rancho Silverado Stables, LLC, Heather Perkins, Fawn Rinalduzzi, Eardog Productions LLC, Kimberly M. Wang; Argaux LLC, and Argaux & Amliere LLC's (collectively, "Defendants") Motion for Protective Order to Stay Plaintiff Steve Frye's ("Plaintiff") Discovery and Quash Certain Discovery Requests is GRANTED IN PART. IT IS ORDERED THAT Defendants need not answer Request for Admission ("RFA") Nos. 1-9, Special Interrogatory ("SRog") Nos. 2, 6, 11, 15, 18, 19, 21, 22, 23, 24, 25, 27, 31, 35, 39, 43, 47, 50, 51, 52, 54, 57, 58, 60, 61, 62, 64, 66, and 67, and Request for Production of Documents ("RFP") Nos. 6, 13, 15, 16, and 17. IT IS FURTHER ORDERED THAT Defendants must respond to the remaining discovery and produce any responsive documents within sixty (60) days of this ruling. The court DENIES both parties' requests for sanctions, as each are substantially justified in bringing and opposing this Motion and the court's ultimate ruling is a split-decision, granting some of the relief requested and denying other relief requested. In this action, Plaintiff has propounded identical sets of discovery on six of the Defendants consisting of: 67 Special Interrogatories; 27 Requests for Admission; 19 Requests for Production of Documents, and 20 Form Interrogatories. Defendants object to the volume and scope of these discovery requests. First, Defendants ask that the court stay to stay all discovery until resolution of Defendants' pending demurrer, filing of Defendants' answer and entry of a case management order setting forth a discovery schedule. "Employing a discovery method in a manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden and expense" constitutes a misuse of the discovery process, and is subject to sanctions. (CCP § 2023.010(c).) "[F]or good cause shown, the court may establish the sequence and timing of discovery for the convenience of parties and witnesses and in the interests of justice." (Cal. Civ. Proc. Code § 2019.020(b).) "The court shall restrict the frequency or extent of use of a discovery method . . . if it determines either of the following: (1) The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive[; and/or] (2) The selected
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		method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” (CCP § 2019.030(a)(1)-(2).) The court finds that Defendants have failed to demonstrate the need for a stay of discovery to the extent the discovery is within the scope of Plaintiff’s claims and is not otherwise improper, as discussed in further detail below. The court finds that a protective order is more appropriate to address Defendants’ objections to Plaintiff’s discovery requests. Second, Defendants ask for a protective order as to Plaintiff’s Requests for Admission (“RFA”) Set One Nos. 1-9 & 16-24 and Special Interrogatories (“SRog”) Set One (in its entirety) pursuant to California Code of Civil Procedure Sections 2030.090 and 2033.080. “The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (CCP § 2030.090(b).) “This protective order may include, but is not limited to, one or more of the following directions: (1) That the set of interrogatories, or particular interrogatories in the set, need not be answered[;] (2) That, contrary to the representations made in a declaration submitted under Section 2030.050, the number of specially prepared interrogatories is unwarranted[;] (3) That the time specified in Section 2030.260 to respond to the set of interrogatories, or to particular interrogatories in the set, be extended. . . .” (<i>Id.</i>) Similar relief is available for RFPs and RFAs. (CCP §§ 2031.060(b), 2033.080(b).) <u>Requests for Admission</u> “[R]equests for admission serve to narrow discovery, eliminate undisputed issues, and shift the cost of proving certain matters.” (<i>Orange Cnty. Water Dist. v. The Arnold Eng'g Co.</i> (2018) 31 Cal. App. 5th 96, 115.) “Requests for admissions mainly aim to settle a triable issue so it will not have to be tried.” (<i>LCPFV, LLC v. Somatdary Inc.</i> (2024) 106 Cal. App. 5th 743, 755.) Their purpose is not to uncover factual information; their “main purpose is to set issues at rest by compelling admission of things that cannot reasonably be controverted.” (<i>Id.</i>)
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		The court finds that the following RFAs are premature as Defendants have not yet filed an Answer to Plaintiff's operative complaint: • RFA 1: "Admit you have no facts to support your general denial of the allegations in the complaint in this legal action," • RFA 2: "Admit you have no witnesses with knowledge of facts to support your general denial of the allegations in the complaint in this legal action." • RFA 3: "Admit you have no documents to support your general denial of the allegations in the complaint in this legal action." • RFA 4: "Admit you have no facts to support your specific denial of the allegations in the complaint in this legal action." • RFA 5: "Admit you have no witnesses with knowledge of facts to support your specific denial of the allegations in the complaint in this legal action." • RFA 6: "Admit you have no documents to support your affirmative defenses in this legal action." • RFA 7: "Admit you have no facts to support your affirmative defenses in this legal action." • RFA 8: "Admit you have no witnesses with knowledge of facts to support your affirmative defenses in this legal action." • RFA 9: "Admit you have no documents that support your affirmative defenses in this legal action." At this stage of proceedings, these RFAs do not narrow discovery, eliminate undisputed issues, or settle a triable issue, and are therefore improper and need not be answered Defendants also object to RFA Nos. 16-24. Defendants argue that the subject RFAs, in combination with Form Interrogatory No. 17.1 improperly requires Defendants to prepare Plaintiff's case for him. However, the court finds that these RFAs are within the scope of discovery, are relevant to Plaintiff's claims, and do serve to narrow the issues in this action: • RFA 16: "Admit you deterred non-females from purchasing and/or receiving admission to the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date." • RFA 17: "Admit you excluded non-females from purchasing and/or receiving admission to the Ladies Night events that occurred at the Orange County Polo
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		Club at any time from July 7, 2022, through the present date.” • RFA 18: “Admit you denied full and equal access for non-females to the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” • RFA 19: “Admit you deterred Steve Frye from attending the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” • RFA 20: “Admit you excluded Steve Frye from attending the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” • RFA 21: “Admit you denied Steve Frye full and equal access to the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” • RFA 22: “Admit you violated California Civil Code section 51 by deterring Steve Frye from attending the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” • RFA 23: “Admit you violated California Civil Code section 51 by excluding Steve Frye from attending Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” • RFA 24: “Admit you violated California Civil Code section 51 by denying Steve Frye full and equal access to the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” Thus, the Motion for Protective Order is denied as to these RFAs. <u>Special Interrogatories</u> “[N]o party shall, as a matter of right, propound to any other party more than 35 specially prepared interrogatories.” (CCP § 2030.030(b).) “[A] party need only respond to the first 35 specially prepared interrogatories served, if that party states an objection to the balance, under Section 2030.240, on the ground that the limit has been exceeded.” (CCP § 2030.030(c).) “Subject to the right of the responding party to
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		seek a protective order . . . any party who attaches a supporting declaration [of necessity] may propound a greater number of specially prepared interrogatories to another party if this greater number is warranted[.]” (CCP § 2030.040(a).) Any party that seeks to propound more than 35 SRogs, “shall attach to each set of those interrogatories a declaration” setting forth grounds for the additional discovery, including stating why it is warranted and representing that “[n]one of the questions in this set of interrogatories is being propounded for any improper purpose, such as to harass the party, or the attorney for the party, to whom it is directed, or to cause unnecessary delay or needless increase in the cost of litigation.” (CCP § 2030.050.) Defendants object to Plaintiff’s 67 SRogs to each Defendant in part because they exceed 35. Defendants argue that Plaintiff’s counsel’s statement of necessity is baseless, but the court finds that the needs of this case, including the complexity of the issues and the expedience of using special interrogatories instead of alternative methods of discovery, justify a higher number of SRogs. There is also no evidence that “this set of interrogatories is being propounded for any improper purpose, such as to harass the party, or the attorney for the party, to whom it is directed, or to cause unnecessary delay or needless increase in the cost of litigation.” (CCP § 2030.050.) Defendants also argue that the amount of discovery requests are excessive and that Defendants should not have to prepare Plaintiff’s case for him. However, Defendants cite a case that is clearly distinguishable from the facts here. “[W]here the answer to an interrogatory may be derived or ascertained from the business records of the party to whom such interrogatory is addressed, it is a sufficient answer to such interrogatory to specify the records from which the answer may be derived or ascertained and to afford to the propounder a reasonable opportunity to examine such records and to make copies thereof or compilations, abstracts or summaries therefrom.” (<i>Bunnell v. Superior Ct. of Alameda Cnty.</i> (1967) 254 Cal. App. 2d 720, 724.) Further, “when the material to be ‘discovered’ consists . . . solely of information available to both parties, it defeats the purpose of the Discovery Act to compel one party to perform another party’s research, whether such be laborious or not.” (<i>Id.</i>) In <i>Bunnell</i>, a party was asked to identify witnesses with relevant knowledge and the party’s response was essentially “persons mentioned at prior trials and depositions.” (<i>Id.</i> at 722.) The appellate court found that
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		response sufficient because there was “nothing to discover insofar as the identity of the witnesses is concerned in view of plaintiff’s answer that there are no witnesses other than those mentioned in the depositions and at the previous trials, transcripts of which are in defendant’s possession.” (<i>Id.</i> at 723.) “[T]he question is <i>who</i> will have the onus of researching these transcripts for the purpose of listing the names of the witnesses in order to lay a foundation for the exclusion of witnesses whose identity has not been disclosed.” (<i>Id.</i>) The court concluded that the onus was on the propounding party because “the purpose of the Discovery Act is to permit a party to prepare himself for trial, not to require one party, at his expense, to prepare the case for his opponent.” (<i>Id.</i>) The holding in <i>Bunnell</i> does not support Defendants’ refusal to respond at all to Plaintiff’s SRogs as this is not a situation where the information requested is equally available to both parties, or a situation where Defendants are seeking to respond by reference to documents containing the requested information. However, the court agrees with Defendants that some of the SRogs are overbroad, seek irrelevant information, and/or are ambiguous, and therefore need not be answered. Plaintiff’s SRog Nos. 2, 6, 11, 15, 19, 23, 27, 31, 35, 39, 43, 50, 54, 58, and 62, request that Defendants “IDENTIFY each FACT RELATING TO” various subject matters. This language is overbroad and ambiguous, and seeks information far beyond the scope of this action. Plaintiff fails to address the impropriety of this type of interrogatory in opposition. The court finds that these requests need not be answered by Defendants. Plaintiff’s SRog Nos. 18, 21, 22, 24, 25, 47, 51, 52, 57, 60, 61, 64, 66 and 67 are also overbroad and Plaintiff fails to adequately explain in his opposition how these requests are within the scope of discoverable information: • SRog No. 18: “IDENTIFY each PERSON who purchased and/or received admission to the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” (This action concerns putative class members who were denied admission to the Ladies Night events, not those who purchased tickets and/or
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		received admission, and Plaintiff fails to explain the relevancy of this category of SRogs.) • SRog No. 21: “IDENTIFY each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO each PERSON who purchased and/or received admission to the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” • SRog No. 22: “IDENTIFY each PERSON who purchased and/or received admission to the co-ed events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” • SRog No. 24: “IDENTIFY each PERSON having knowledge of any FACTS RELATING TO each PERSON who purchased and/or received admission to the co-ed events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” (Defendants’ co-ed events are not the subject of this action, and Plaintiff concedes as much by failing to address the relevancy of this category of SRogs in his opposition.) • SRog No. 25: “IDENTIFY each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO each PERSON who purchased and/or received admission to the co-ed events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” • SRog No. 47: “IDENTIFY each term of each agreement and/or contract between YOU and any PERSON RELATING TO the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” (This request is overly broad and burdensome, and is better answered through the production of the agreements and contracts themselves, which are already the subject of one of Plaintiff’s RFPs.) • SRog No. 51: “IDENTIFY each PERSON having knowledge of each FACT RELATING TO each invoice and/or payment between YOU and any PERSON RELATING TO the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” (Plaintiff fails to explain the relevance of every invoice and/or payment concerning the Ladies Night events to the claims in this action.)
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- SRog No. 52: "IDENTIFY each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO each invoice and/or payment between YOU and any PERSON RELATING TO the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date."
- SRog No. 57: "IDENTIFY each PERSON on YOUR newsletter distribution list, at any time from July 7, 2022, through the present date." **(Plaintiff provides no justification for seeking discovery regarding each Defendants' newsletter distribution list, especially the Defendants who acted as only vendors at the event.)**
- SRog No. 60: "IDENTIFY each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO YOUR newsletter distribution list, at any time from July 7, 2022, through the present date."
- SRog No. 61: "IDENTIFY each PERSON on YOUR customer email list, at any time from July 7, 2022, through the present date." **(Plaintiff provides no justification for seeking discovery regarding each Defendants' customer e-mail distribution list, especially the Defendants who acted as only vendors at the event.)**
- SRog No. 64: "IDENTIFY each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO YOUR customer email list, at any time from July 7, 2022, through the present date."
- SRog No. 66: "IDENTIFY the content of the communication between YOUR personnel and Orange County Polo Club." **(Plaintiff provides no reason he needs every communication between each Defendant and the Orange County Polo Club without any limitation as to subject matter or time.)**
- SRog No. 67: "IDENTIFY each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO communication between YOU and Orange County Polo Club."

The court finds that Defendants need not answer this set of SRogs either.

Requests for Production

The court also finds that the RFP Nos. 6, 13, 15, 16, and 17 relating to the above SRogs are overbroad and/or outside the scope of discovery in this action and need not be responded to:

- RFP No. 6: “Each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO each PERSON who purchased and/or received admission to the co-ed events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.”
- RFP No. 13: “Each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO each invoice and/or payment between YOU and any PERSON RELATING TO the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.”
- RFP No. 15: “Each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO YOUR newsletter distribution list, at any time from July 7, 2022, through the present date.”
- RFP No. 16: “Each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO YOUR customer email list, at any time from July 7, 2022, through the present date.”
- RFP NO. 17: “Each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO communication between YOUR personnel and Orange County Polo Club.”

As the discovery has now been narrowed, the court finds that the burden of responding to the remaining discovery is commensurate with the discovery sought in light of “the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” (*People ex rel. Harris v. Sarpas* (2014) 225 Cal. App. 4th 1539, 1552 [citing to CCP § 2019.030(a)(2)].)

However, the court finds that additional time is necessary for Defendants to respond to the remaining discovery, and extends the time for Defendants to respond to sixty (60) days from the date of this hearing.

Defendants are ordered to give notice of this ruling.